

the time for holding the next court of quarter sessions, so that the sessions be held not earlier than fourteen days before nor later than fourteen days after the week in which they would otherwise be held.

(2) The Quarter Sessions Act, 1894, is hereby repealed.

57 & 58 Vict.
c. 6.

4. For the purposes of this Act—

Definitions.

The expression “proper officer” means, as respects assizes, the clerk of assize, and, as respects quarter sessions, the clerk of the peace of the county or borough for which the court of quarter sessions is held; and

The expression “commission day” means the day named in the London Gazette as the day appointed for the holding of assizes at any place.

5. This Act may be cited as the Assizes and Quarter Sessions Act, 1908. Short title.

CHAPTER 42.

An Act to prohibit the Manufacture, Sale, and Importation of Matches made with White Phosphorus, and for other purposes in connection therewith.

[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) It shall not be lawful for any person to use white phosphorus in the manufacture of matches, and any factory in which white phosphorus is so used shall be deemed to be a factory not kept in conformity with the Factory and Workshop Act, 1901, and that Act shall apply accordingly.

Prohibition of use of white phosphorus in manufacture of matches.
1 Edw. 7. c. 22.

(2) The occupier of any factory in which the manufacture of matches is carried on shall allow an inspector under the Factory and Workshop Act, 1901, at any time to take for analysis sufficient samples of any material in use or mixed for use, and, if he refuses to do so, shall be guilty of obstructing the inspector in the execution of his duties under that Act:

Provided that the occupier may, at the time when the sample is taken, and on providing the necessary appliances, require the inspector to divide the sample so taken into two parts and to mark, seal, and deliver to him one part.

2. It shall not be lawful for any person to sell or to offer or expose for sale or to have in his possession for the purposes

Prohibition of sale.

of sale any matches made with white phosphorus, and, if any person contravenes the provisions of this section, he may on complaint to a court of summary jurisdiction be ordered to forfeit any such matches in his possession, and any matches so forfeited shall be destroyed or otherwise dealt with as the court may think fit, but this provision shall not come into operation as respects any retail dealer until the first day of January, nineteen hundred and eleven.

Prohibition of
importation.

3. It shall not be lawful to import into the United Kingdom matches made with white phosphorus, and matches so made shall be included amongst the goods enumerated and described in the table of prohibitions and restrictions contained in section forty-two of the Customs Consolidation Act, 1876.

39 & 40 Vict.
c. 36.

Compulsory
licence to use
patents.

4.—(1) Any person who is manufacturing or proposing to manufacture matches by way of trade may present a petition to the Board of Trade, praying for the grant of a compulsory licence to use any process patented at the passing of this Act for the manufacture of matches without white phosphorus, other than matches intended to strike only on a surface specially prepared for the purpose.

7 Edw. 7. c. 29.

(2) The Board of Trade, after considering any representations that may be made by the patentee as defined by the Patents and Designs Act, 1907, and any person claiming an interest in the patent as exclusive licensee or otherwise, and, after consultation with the Secretary of State, may order the patentee to grant a licence to the petitioner on such terms as the Board may think just. The provisions of the Board of Trade Arbitrations, &c., Act, 1874, shall apply to proceedings under this section as if this Act were a special Act within the meaning of that Act.

37 & 38 Vict.
c. 49.

(3) An order of the Board directing the grant of a licence under this section shall, without prejudice to any other method of enforcement, operate as if it were embodied in a deed granting a licence and made between the petitioner and the patentee and such other persons claiming an interest in the patent as aforesaid.

Short title,
commence-
ment, and
construction.

5.—(1) This Act may be cited as the White Phosphorus Matches Prohibition Act, 1908, and shall, except as otherwise expressly provided, come into operation on the first day of January nineteen hundred and ten.

(2) For the purposes of this Act the expression "white phosphorus" means the substance usually known as white or yellow phosphorus.

CHAPTER 43.

An Act to provide for the Admission of Representatives
of the Press to the Meetings of certain Local Authorities.
[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:

1. Representatives of the press shall be admitted to the meetings of every local authority: Provided that a local authority may temporarily exclude such representatives from a meeting as often as may be desirable at any meeting when, in the opinion of a majority of the members of the local authority present at such meeting, expressed by resolution, in view of the special nature of the business then being dealt with or about to be dealt with, such exclusion is advisable in the public interest.

Representa-
tives of the
press to be ad-
mitted to the
meetings of a
local authority
subject to a
proviso.

2. For the purposes of this Act the expression "local authority" means—

Definitions

- (a) A council of a county, county borough, borough (including a metropolitan borough), urban district, rural district, or parish, and a joint committee or joint board of any two or more such councils to which any of the powers or duties of the appointing councils may have been transferred or delegated under the provisions of any Act of Parliament or Provisional Order; and a parish meeting under the provisions of the Local Government Act, 1894; 56 & 57 Vict. c. 73.
- (b) An education committee and a joint education committee, established under section seventeen of the Education Act, 1902, so far as respects any acts or proceedings which are not required to be submitted to the council or councils for its or their approval; 2 Edw. 7. c. 42.
- (c) A board of guardians, and a joint committee constituted in pursuance of section eight of the Poor Law Act, 1879, and the board of management of any school or asylum district formed under any of the Acts relating to the relief of the poor; 42 & 43 Vict. c. 54.
- (d) A central body and a distress committee under the Unemployed Workmen Act, 1905; 5 Edw. 7. c. 18.
- (e) The Metropolitan Water Board and a joint water board constituted under the provisions of any Act of Parliament or Provisional Order;
- (f) Any other local body which has, or may hereafter have, the power to make a rate.

The expression "rate" means a rate the proceeds of which are applicable to public local purposes, and leviable on the basis